Office of the Principal, Dr Radhakrishnan Govt Medical College Hamirpur, HP

No. HFW-HMR(Dr.RKGMC)/SS/PG Corressp./2025/- २३७ २३८ **Dated:** 2/12/25

Terms & conditions of bound for Post Graduation (Direct Candidates)

As per the "Policy for regulating admission to various Post Graduation and Super Specialty courses in Medical Education applicable in the State of Himachal Pradesh in short 'PG/SS Policy 2025'notified by the Secretary (Health) to the Government of Himachal Pradesh vide Notification File No. HFW-B(F)4-9/2017-II-L dated 15.10.2025" Clause 6, Sub clause 6.1 **" Every Direct candidate shall have to furnish a bond to serve the state for at least two years including mandatory one year of field posting after completion of their respective courses".**

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of Institutes of National Importance (INI) may avail leave of kind due including Study Leave/ Extra Ordinary Leave, as may be otherwise admissible as per CCS (Leave) Rules.

(c) Such GDOs who secure admissions in Post Graduation courses outside the State through NEET-PG or against unsponsored quota of Institutes of National Importance (INI) shall apply to the DHS for relieving. If the candidate has sufficient leave of kind due as per **Clause (b) above**, the same may be recommended to the Government subject to the conditions as per the leave being granted including bond period for Study Leave. If sufficient leave is not admissible as may be required for duration of the Post Graduation course, the GDO will have to resign if he/ she wants to pursue the Post Graduation and accordingly his/ her case shall be sent to the Government by the DHS alongwith recommendations.

5.5 If any GDO joins Post Graduation within or outside the state through NEET-PG exam/ Institutes of National Importance (INI) Entrance Examination as a direct candidate without due resignation/ permission, in case of contractual GDO his/ her services shall be deemed terminated and recovery shall be made as per terms of contract agreement and in case of regular GDO candidate, disciplinary proceedings shall be initiated besides writing to the concerned Head of Institute for cancellation of the admission.

6. Terms and conditions of Bond for Post Graduation:

6.1 As the Government incurs substantive expenditure on each candidate for doing Post Graduation and also pays them full pay along with all allowances and seniority during the course, every GDO (regular/ contract) who have been sponsored to pursue Post Graduation **within the State** in Government Medical/ Dental colleges shall have to furnish a bond to serve the State for at least **four years including mandatory one year of field posting** after completion of their respective courses. Similarly, in case of GDOs sponsored for Post Graduation **outside the State** on sponsored quota seats of Institutes of National Importance (INI), as the Government pays them full pay along with increments during the course and they are not even serving the state during the course, every such GDO (regular) shall have to furnish a bond to serve the State for at least **five years including mandatory one year of field posting** after completion of their respective courses. Since the **direct candidate who pursues Post Graduation within the State** in Government Medical/ Dental Colleges on State/ All India Quota stand on a different footing as they are not entitled to service benefits including full pay (with allowances and increments) and chances of regularization to which their GDO counterparts are entitled; however, keeping in view the resources expended in their education by the government including payment of stipend, every such direct candidate shall have to furnish a bond to serve the State for at least **two years including mandatory one year of field posting** after completion of their respective courses.

Further, on selection for Senior Residency/ Tutorship by the GDO/ direct candidates from the Government Medical Colleges/ Institutes of the State during the mandatory bond period would lead to extension of the present bond period of the concerned GDO/ direct candidates to serve the State till completion of three years of Senior Residency/ Tutorship as the case may be. Provided further that field posting shall be exempted for those candidates

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joining at AIMSS Chamiana (Shimla) after completion on their respective PG courses/ degree and the respective period of 01 (one) year of their service at AIMSS Chamiana (Shimla) shall be counted as 'mandatory field posting' under the provisions of this policy.

Provided further that such GDOs who get selected as per **Clause 6.5**. for doing Super Speciality before completion of the bond period of Post Graduation as such in that event the candidate already being bonded to serve the State as per the provisions of this policy for doing Post Graduation for 4/5 years alongwith bond amount of **Rs. 40 Lakhs** on such selection for the Superspecialty course will have to furnish an undertaking on judicial paper to serve the **balance/remaining bond period** for doing Post Graduation **alongwith the bond period applicable after doing Super Speciality course** for serving the State as the case may be. For this purpose both the bond periods shall be clubbed together for serving the State for a period equal to **balance/remaining bond period of PG course + mandatory period of bond in respect of Superspecialty course apart from the mandatory one year of field posting** and the candidates shall furnish a fresh bond in the form of legal undertaking to serve the State for the clubbed period failing which the candidate shall have to pay **Rs. 90 Lakhs** to the State Government. The candidate shall also furnish an undated cheque from a scheduled bank amounting to **Rs. 90 Lakhs** in the name of DHS/ DME. The DHS/ DME shall be at liberty to get the cheque encashed in event of violation of the bond conditions.

6.2 The bond as per Clause 6.1 shall be in the following form:

6.2.1 The Bond shall be non-transferable to Medical Institutes (not owned by the State Government)/ Institutes of National Importance (INI) functioning within/ outside the State for all intents and purposes. All the candidates as per **Clause 6.1** shall furnish a bond in the form of a legal undertaking to serve the State for prescribed period which should be attested by competent authority not below the rank of Executive magistrate failing which the candidate shall have to pay the **Rs. 40 Lakhs** and in case of clubbed bond period **Rs. 90 Lakhs** as the case may be to the State Government. The candidate shall also furnish an undated cheque from a scheduled bank amounting to **Rs. 40/90 Lakhs** in the name of DHS. The DHS shall be at liberty to get the cheque encashed in event of violation of the bond conditions.

6.2.2 The candidates as per **Clause 6.1** shall also deposit their original bachelor degree in case of MD/MS course and MD/MS degree in case of Superspeciality course and registration certificate from the Medical/ Dental Council concerned with the DHS/ DDHS (in case of GDOs) and the Principal concerned (in case of direct candidates). The concerned issuing University/ Institution shall be informed about such retention and the candidate shall be debarred from obtaining any duplicate degree. **The original bachelor degree shall be released only after completion of the Bond Period including one year mandatory field posting or after deposition of the requisite amount and this shall be a part of the bond agreement.**

6.2.3 The candidates shall also furnish undertaking as a part of bond that they shall complete the course prescribed failing which they shall be liable to pay **Rs. 10 Lakhs + 18% interest per annum** and salary/ stipend drawn as the case may be to the State government for wastage of seat.

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6.2.4 The prescribed format of the bond shall be as per **Annexure D**.

6.3 It shall be the sole responsibility of DHS/ DDHS to ensure the furnishing of such documents from each GDO candidate who is being sponsored and the sole responsibility of the Principal of concerned Government Medical/ Dental College to ensure collection of these documents at the time of admission of a direct candidate to the course. Any dereliction of duty in this end shall make the concerned liable for action.

6.4 The custodian of these three documents– (i) Bond as legal undertaking, (ii) Undated Cheque and (iii) the original Bachelor's degree shall be DHS/ DDHS **(in case of GDOs)** and concerned Principal of Government Medical/ Dental Colleges **(in case of direct candidates)**. Two months before the tentative completion of the Post Graduation in every Government Medical/ Dental College, the DHS/ DDHS shall take list of candidates through concerned Principals who are bonded to serve the state. Simultaneously, the DHS/ DDHS shall take over the custody of the documents including the **Bond agreement, Undated Cheque and Original Bachelor degree** in respect of direct candidates. The field posting orders of such candidates shall be issued by the DHS/ DDHS as early as possible on successful completion of PG course by the concerned candidates as per the NMC norms and submission of joining report to be submitted to the DHS/ DDHS. The concerned Principals shall relieve the candidates (including GDOs and Direct candidate) only after successful completion of the course with the direction to report to the DHS.

6.5 In no case, NOC will be granted for second Post Graduation course to any candidate during the mandatory period of service of the State including field posting after first Post Graduation except for doing Superspeciality course.

6.6 **The following shall constitute a violation of the bond to serve the state as outlined in Clause 6.1:**

6.6.1 Failure to join the DHS/ DDHS within 10 days on successful completion of PG course as per NMC norms and once the posting orders are issued, the concerned shall be regulated as per instructions/ guidelines/ policy of the Department of Personnel, Government of Himachal Pradesh.

6.6.2 Putting in request for EOL/ Study leave/ NOC during the mandatory period of service of the State.

6.7 **In the event of a candidate violating the terms of bond as outlined in Clause 6.6, the following actions shall be initiated by the DHS:**

6.7.1 The salary paid to the GDOs (sponsored) and stipend paid to the direct candidates shall be recovered through due process of law alongwith bond amount and 18% interest per annum.

6.7.2 The bond amount shall be recovered through due process of law. The Undated Cheque submitted by the candidate as a part of bond documents shall be en-cashed.

6.7.3 Initiation of disciplinary proceedings against the GDO candidate.

6.7.4 The original bachelor degree shall not be returned and endorsement shall be made to the concerned University thereof.

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6.7.5 Cancellation of registration from the concerned Medical/ Dental Council.

7. **Remuneration during Post Graduation:**

7.1 The GDOs appointed on contract basis and sponsored for pursuing Post Graduation within the State as per **Clause 5.3** shall be paid the emoluments as fixed by the Government of HP and the same shall also be part of the Bond agreement also.

7.2 The Regular GDOs sponsored for pursuing Post Graduation within the State and outside the State on sponsored quota seats of Institutes of National Importance (INI) as per **Clause 5.3** shall be treated on duty during the prescribed period of Post Graduation and he/ she shall be paid the regular pay, allowances including increments for such prescribed period. In case, the sponsored GDO is not able to complete the Post Graduation within the prescribed time period, the extra period spent during Post Graduation beyond the prescribed period may be regularized against the leave of kind due. If there is no sufficient leave of kind due in his/ her credit, that period shall be treated as EOL and the payment made to the person for this period shall be recovered from the candidates.

7.3 Direct candidates shall be paid stipend as applicable to them.

8 **Remuneration during the mandatory field posting:**

8.1 The regular GDO shall continue to draw the emoluments and pay admissible to him/ her with due allowances and increments during the period of mandatory field posting.

8.2 The contractual GDO shall continue to draw the salary as admissible to him as per terms of the contract.

8.3 The Direct candidates shall draw salary at the rate as fixed by the Government and shall be treated as contractual GDOs for all practical purposes during the period of mandatory field posting. However, if the direct candidate subsequently joins as Senior Resident in any of the Medical Colleges after completion of mandatory period of field posting, he shall draw the stipend as prescribed for a Senior Resident as notified by the Government from time to time.

9 **Terms for leaving Post Graduation course midway:**

9.1 If the GDO's who have been granted sponsorship for pursuing Post Graduation within the State or outside the State, leaves the Post Graduation course midway, he/ she shall be debarred to re-appear in any entrance examination for Post Graduation for the next five years within and outside the State of Himachal Pradesh. The period of five years for the purpose of de-barring shall be reckoned from the date of leaving the course midway.

9.2 In addition to this, for those GDO's who leave Post Graduation course mid way, the period spent in the Medical Colleges during Post Graduation may be regularized against the leave of kind due. If there is no sufficient leave of kind due in his credit that period may be treated as EOL and the payment made to the person for this period shall be recovered from the candidates. In addition to this, the GDO shall have to pay **Rs. 10 Lakhs + interest @18% per annum** alongwith salary drawn in event of leaving the course midway as per terms of the bond. However, such GDOs shall be exempted from payment of **Rs. 10 Lakhs** for justified reasons within 90 days of commencement of the said course.

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9.3 In case of direct candidates who leave the course midway, they shall have to pay **Rs. 10 Lakh + interest @18% per annum** alongwith stipend drawn to the State Government as per the terms and conditions of the bond. Information in respect of such cases shall be sent to the DHS by the concerned Principal along with bond and other documents.

10 The terms for second Post Graduation Course:

The GDOs who have been sponsored to pursue Post Graduation within or outside the State earlier and who are desirous of pursuing a second Post Graduation Course shall be governed by the following conditions:

10.1 The GDOs who have completed PG Degree in one specialty shall not be granted sponsorship/ NOC for pursuing PG Degree in any other specialty. However, such candidates may pursue their second PG degree course only after the grant of EOL by the Government as per CCS Leave Rules.

10.2 The GDOs who have completed PG Diploma/ DNB in one specialty may be given NOC for pursuing PG Degree in the same specialty, only after serving the state for at least five years (either in field postings or in Government Medical/ Dental Colleges) after completion of PG Diploma/ DNB.

10.3 The GDOs who have completed PG Diploma/ DNB in one specialty shall not be granted NOC for pursuing PG Degree/ DNB/ Diploma in any other specialty. However, such candidates may pursue their second PG degree course only after the grant of EOL by the Government as per CCS (Leave) Rules.

10.4 Any GDO who is not fulfilling the condition of minimum required service to be sponsored as Post Graduate Candidate within or out of the State shall have to resign on their selection against direct/ open seats before joining such courses. And if he/ she joins Post Graduation without getting NOC from the Government or without submitting his/ her resignation, in case of contractual GDO his/ her services shall be deemed terminated and recovery shall be made as per terms of contract agreement and in case of regular GDO candidate, disciplinary proceedings shall be initiated besides writing to the concerned Head of Institute for cancellation of the admission.

11 NOC and Sponsorship for pursuing Super Specialty Courses:

11.1 NOC/ Sponsorship for GDOs:

11.1.1 There shall be no requirement of NOC for appearing in the All India NEET-Super Specialty or any other Entrance Examination to the Super specialty courses prescribed except for appearing against the Sponsored quota seats of the Institutes of National Importance (INI).

11.1.2 Since the State needs the services of Super Specialists to improve the health care facilities within the State, the State would offer Sponsorship to candidates who wish to pursue Super Specialty courses, subject to following conditions:

a) The GDO seeking Sponsorship should be regular and should have completed the mandatory service of the State after Post Graduation as per **Clause 6.1** if the candidate had pursued Post Graduation earlier as a sponsored candidate.

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